

defective for the reasons stated. If Plaintiff files an amended complaint, Plaintiff may be able to allege facts to state common counts other than account stated and open book account based on the current and additional facts Plaintiff may set forth. Leave to amend as to the common counts shall include leave to amend to allege common counts other than the ones currently pled in the complaint.

Special Demurrers for Uncertainty

Having sustained a general demurrer to each of the four causes of action as stated above, the Court does not reach the special demurrer for uncertainty to those causes of action.

7. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

***HEARING ON MOTION IN RE: STRIKE**

FILED BY: RAI, JEFFREY L.

TENTATIVE RULING:

Before the Court is a motion by defendant Jeffrey Rai to strike portions of plaintiff Kenneth Rai's complaint. For the reasons set forth, the motion is **denied as moot** based on the Court's concurrent ruling on the defendant's demurrer.

8. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**

FILED BY:

TENTATIVE RULING:

The motion to be relieved as counsel for Priscella Percy, brought by Khaldoun Baghdadi of Walkup, Melodia, et al., and Mikal Watts of Watts, LLP, is granted. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.

9. 9:00 AM CASE NUMBER: MSC16-02404

CASE NAME: ACOSTA VS REMINGTON LODGING

***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Plaintiff Rina Acosta moves for preliminary approval of her class action settlement with defendant Remington Lodging & Hospitality, LLC. Preliminary approval was granted on September 12, 2025. Plaintiff separately moved for attorney's fees, costs and a service award. That motion initially was set by the clerk's office for a hearing on July 9, 2026. In order to hear the two motions together, the Court reset the hearing on the fee motion to February 19, 2026. The two motions will be considered together.

A. Background and Settlement Terms

The original complaint was filed by plaintiff on December 20, 2016, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various